

Employment & IP Defense — Indonesian PKWT Contracts (Master Index)

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Asset di knowledge base che raggruppa **research deep-dive sulla difesa della proprietà intellettuale di un PT indonesiano nei confronti di dipendenti WNI**, con clausole pronte all'uso (Pasal Bahasa Indonesia) e analisi giurisprudenziale.

Use case primario: drafting di **PKWT (Perjanjian Kerja Waktu Tertentu)** che proteggano codebase, AI prompts, RAG system, knowledge base, e customer data, con clausole defensible nei tribunali indonesiani (PHI Denpasar, Pengadilan Niaga Surabaya).

Files in this set

1. **01-rahasia-dagang-uu30-2000.md** — Trade secret protection: i tre elementi UU 30/2000, durata, sanksi pidana art. 17, lista trade secrets per software company.
2. **02-hak-ciPTa-uu28-2014-employment.md** — Copyright assignment under UU 28/2014: art. 35 work-for-hire default, art. 36 pengalihan eksplisit, art. 57 hak moral non rinunciabile, fail-safe clauses.
3. **03-non-compete-MA-3549-2023.md** — Non-compete & non-solicit enforceability: Putusan MA 3549 K/Pdt/2023, durate 6-12 mesi, requisiti di proporzionalità, freelance allowance.
4. **04-electronic-evidence-ite-monitoring.md** — UU ITE Pasal 5 (admissibility git history, cloud logs), UU PDP 27/2022 monitoring compliance, forensic preservation.
5. **05-pasal-templates-ready-bahasa-indonesia.md** — Clausole Bahasa Indonesia pronte: definisi rahasia dagang, pengalihan hak cipta, kerahasiaan, non-compete, denda proporzionale, source code controls, return-and-destroy.

Common drafting mistakes (dal research)

- ❌ Non-compete >12 mesi → batal di pengadilan
- ❌ Denda arbitrario (es. Rp 500jt) → ridotto da hakim per art. 1249 KUHPperdata
- ❌ Affidarsi solo a default Pasal 35 UU 28/2014 → ambiguità su out-of-hours code
- ❌ Generic “menjaga kerahasiaan” → non qualifica come rahasia dagang ex UU 30/2000
- ❌ No survival clause → kewajiban kerahasiaan post-termination contestabile
- ❌ Mixed forum / no carve-out IP → Pengadilan Niaga vs PHI confusione

Enforcement playbook (post-breach)

1. Forensic IT preservation (image device, log, hash) — UU ITE Pasal 5
2. Ex-parte sita jaminan (RBg) — beni mobili contenenti rahasia dagang
3. Gugatan perdata (Pengadilan Niaga Surabaya) — wanprestasi + ganti rugi + injunctive relief
4. Laporan pidana Polda Bali:
 - UU ITE Pasal 30 (akses tanpa hak): max 8 anni + Rp 800jt
 - UU Rahasia Dagang Pasal 17 (misappropriation): max 2 anni + Rp 300jt
 - UU Hak Cipta Pasal 113-116 (commercial infringement): max 4 anni + Rp 1M

Cross-references

- **PKWT Subhi v2** (case study di applicazione): /research/hr/2026-04-25-contratto-subhi-probation-pkwt.md
- **Source contratto Damar** (sample PT Bayu Bali Nol B2B): Drive 13WZhFEhTykDTzrssZdBx0iohnDb0DdWn
- **NB-3 Company & Licensing** (sibling sources): legal_labor_dispute, legal_ip_basics, riforma_lavoro_2025